

Crime and Morality

Legal Moralism and the Limits of Criminal Law

This guide examines a question that the harm principle cannot answer by itself: may the state criminalise conduct because it is immoral? Legal moralism gives morality an independent role in justifying criminal law. The theory is important because criminal offences frequently reflect moral judgment, but it is also dangerous if the moral preferences of a majority are treated as sufficient reasons for coercion.

The central problem is not whether morality influences law; it plainly does. The difficult question is whether immorality alone can justify investigation, prosecution, conviction and punishment. The answer requires attention to liberty, harm, privacy, legal certainty, minority rights and the constitutional roles of courts and Parliament.

This is a standalone Legal English guide. It explains legal moralism, the Wolfenden Report, the Hart-Devlin debate, Shaw v DPP and Kneller v DPP. It also corrects errors and oversimplifications in the source lecture.

Learning objectives

- **Define legal moralism** and distinguish strong and moderate versions of the theory.
- **Compare legal moralism with the harm principle** without assuming that the two theories are mutually exclusive.
- **Explain the Hart-Devlin debate** and its connection with the Wolfenden Report.
- **Describe Shaw and Kneller** and identify the controversy over judge-made criminal offences.
- **Apply a structured method** to questions involving crime, morality and private conduct.

The question of criminalisation

Criminalisation asks whether conduct should be a criminal offence at all. It comes before questions about actus reus, mens rea, defences and punishment. Because criminal law authorises coercive state action and carries public stigma, the state needs a principled justification for using it.

Question	What it asks	Example
Criminalisation	Should the conduct be a criminal offence?	Should adultery be criminal?
Liability	Has this defendant committed the offence?	Are actus reus and mens rea proved?
Punishment	What response follows conviction?	Fine, community order or imprisonment?

What legal moralism claims

Legal moralism is the view that the immorality of conduct may justify its criminalisation. In its strongest form, a sufficiently serious moral wrong can justify prohibition even without a separately demonstrated harm to another person.

Not every legal moralist makes the same claim. A strong or pure version treats immorality as potentially sufficient. A moderate version treats immorality as one relevant reason but requires additional conditions, such as seriousness, public character, harm, necessity or proportionality.

Version	Basic claim	Main difficulty
Strong legal moralism	Serious immorality can itself justify criminalisation.	How is immorality identified, and why may the state punish it?
Moderate legal moralism	Immorality may count, but other limiting conditions are required.	Which additional conditions prevent arbitrary criminal law?

Legal moralism and the harm principle

Theory	Central justification	Central question
Harm principle	Preventing harm to others	Who is harmed, and how serious and likely is the harm?
Legal moralism	Preventing or condemning serious immorality	What moral standard is violated, and why may criminal law enforce it?

The theories can overlap. Murder is gravely harmful and gravely immoral. A legal moralist can say that murder is criminal because it is morally wrong, while also recognising that it is wrong partly because it destroys life and harms others.

The difference appears at the boundary. Legal moralism becomes distinctive when it supports criminalisation even though no clear harm to another person has been established. Private consensual conduct and adultery are standard tests because many people may condemn them while still rejecting criminal punishment.

Four distinctions needed before discussing morality

- **Immoral is not the same as criminal.** Lying to a friend, betraying a partner or acting selfishly may be morally wrong without constituting an offence.
- **Moral disapproval is not evidence of harm.** A person may feel offended or disgusted without suffering the kind of setback to interests required by the harm principle.
- **Public morality is not necessarily objective morality.** A rule accepted by a majority may still be unjust, discriminatory or based on mistaken beliefs.
- **Decriminalisation is not moral approval.** Removing criminal punishment means that the state will not prosecute; it does not require every citizen to approve of the conduct.

Whose morality

The phrase public morality hides several different ideas. It may refer to moral rules actually accepted by a population, the standards of a reasonable person, religious teaching, constitutional values, or moral principles defended through rational argument. These sources may point in different directions.

H L A Hart distinguished positive morality from critical morality. Positive morality consists of standards actually accepted in a society. Critical morality supplies standards for evaluating those accepted beliefs. The distinction matters because widespread acceptance does not prove that a rule is morally defensible.

Moral change

Public attitudes are not fixed. Conduct once condemned or criminalised may later be recognised as part of private life and equal citizenship. If criminal law simply follows majority feeling, minorities may be punished before prejudice is critically examined.

Adultery illustrates a different problem. Many people regard betrayal of a partner as seriously immoral, but that conclusion does not establish that police investigation, prosecution and punishment are appropriate. Moral seriousness and suitability for criminal law remain separate questions.

Private and public conduct

Privacy does not automatically defeat criminal liability. Murder and domestic violence may occur in private but directly harm another person. The relevant question is therefore not simply where the conduct occurs, but whether it harms others, violates rights or creates a legitimate public concern.

Private consensual conduct presents the harder case. When competent adults consent and no independent harm is shown, the argument for criminalisation rests more heavily on moralism, paternalism or offence to others. Each justification must be identified rather than blended together.

The Wolfenden Report

The 1957 Wolfenden Report examined homosexual offences and prostitution in Britain. It recommended that private homosexual conduct between consenting adults should no longer be criminal. Its central distinction was between the preservation of public order and decency, which can concern the law, and a realm of private morality that should not ordinarily be the law's business.

The recommendation did not declare all private conduct morally good. It separated moral judgment from criminal prohibition. This distinction later became the starting point for the Hart-Devlin debate.

The Hart Devlin debate

The debate asks whether society may use criminal law to preserve its shared morality. Patrick Devlin defended a substantial role for popular morality. H L A Hart defended individual liberty and challenged the claim that private immorality threatens society.

Patrick Devlin

- **Society includes a shared moral structure.** A society is not held together only by territory and government; common moral commitments also help constitute it.
- **Serious attacks on shared morality may threaten social cohesion.** Devlin therefore rejected the view that private immorality can never concern society.
- **The law may defend society's moral environment.** If society may protect itself against political subversion, Devlin argued, it may also protect the morality necessary for its continued existence.
- **Popular morality is identified through the reasonable member of society.** The relevant standard is not an individual judge's private preference but the settled moral judgment associated with the ordinary person or the jury.
- **Enforcement still requires restraint.** Devlin did not argue that every vice must be punished. Tolerance, privacy, the seriousness of the conduct and the practical costs of enforcement remain relevant.

H L A Hart

- **Social disintegration requires evidence.** Hart argued that the existence of shared morality does not prove that every departure from it threatens society's survival.
- **Majority feeling is not enough.** Disgust, indignation or tradition may reveal positive morality, but they do not by themselves establish a critically defensible reason for punishment.
- **Liberty has independent value.** Coercion, prosecution and punishment cause harm. The state therefore needs more than moral dislike before interfering with private choices.
- **Moral criticism must remain possible.** If accepted morality automatically justifies criminal law, unjust conventions become difficult to challenge and minorities remain vulnerable.
- **Harm and other public reasons provide limits.** Hart's liberal position does not make all private action immune; conduct that harms others can still justify intervention.

The disagreement in one table

Question	Devlin	Hart
What holds society together?	Shared morality is part of the social bond.	Shared rules matter, but moral uniformity is not required for survival.
May private immorality concern law?	Yes, if it seriously threatens shared morality.	Not merely because the majority condemns it.
Whose judgment matters?	The settled judgment of the reasonable member of society.	Accepted morality must itself face critical evaluation.
Main danger	Moral disintegration and loss of social cohesion.	Coercion, intolerance and oppression of minorities.

Shaw v Director of Public Prosecutions

Shaw v DPP 1962 AC 220

Facts: Shaw published the Ladies Directory. It contained contact details, photographs and descriptions supplied by prostitutes. He charged for inclusion and sold the directory. He was prosecuted for statutory offences and for conspiracy to corrupt public morals.

Legal issue: Was conspiracy to corrupt public morals an offence known to English law, even though no statute had expressly created it?

Decision: The House of Lords dismissed the appeal and upheld the conviction. The majority recognised a common-law offence of conspiracy to corrupt public morals and asserted a residual judicial responsibility for conduct prejudicial to public welfare.

Why the case matters: The case connects legal moralism with judicial lawmaking. It suggests that courts can protect public morality, but it also raises a legality objection: how can citizens know the criminal law if courts recognise a new offence after the conduct occurs?

The legality principle

The principle of legality requires criminal law to be sufficiently clear and prospective. A person should be able to know in advance what conduct is criminal. Broad expressions such as corrupting public morals create problems of definition, notice and consistent enforcement.

The institutional question is equally important. In a modern democracy, Parliament can investigate, debate and define new offences. Judicial creation of crimes risks replacing public legislation with uncertain moral judgment.

Knüller Publishing Printing and Promotions Ltd v DPP

Knüller v DPP 1973 AC 435

Facts: The defendants were connected with the International Times, which published advertisements through which men sought sexual contacts with other men. They were convicted of conspiracy to corrupt public morals and conspiracy to outrage public decency.

Legal issue: Should Shaw be overruled, and did the common-law offences apply to the published advertisements?

Decision: The House of Lords did not overrule Shaw and the convictions were upheld. The speeches revealed serious disagreement about Shaw, precedent and the proper limits of judicial power.

Why the case matters: Knüller confirmed the immediate authority of Shaw but did not endorse an unlimited power to invent crimes. It is now associated with the proposition that courts should not create new criminal offences and that criminalisation is principally a task for Parliament.

Correcting three common descriptions of Knüller

- **It was not simply a case about homosexuality.** The legal focus was the publication of advertisements, conspiracy and public morality or decency.
- **The second offence was conspiracy to outrage public decency.** The phrase conspiracy to outrage public morals is inaccurate.
- **The case did not give courts a continuing general power to create crimes.** Later authority treats Parliament as the institution responsible for making previously non-criminal conduct criminal.

What happened to the common law conspiracies

Section 5 of the Criminal Law Act 1977 generally abolished conspiracy at common law but preserved narrow exceptions. Section 5 subsection 3 refers to agreements to engage in conduct that tends to corrupt public morals or outrages public decency where the conduct of a single person would not otherwise amount to an offence.

The provision must not be read as a general licence to punish immorality. It concerns a specific and exceptional area of conspiracy law. Modern courts also emphasise the democratic principle that Parliament, not judges, decides whether previously non-criminal conduct should become an offence.

A method for analysing crime and morality

- 1 Define the conduct.** State precisely what act, omission, publication or agreement would be prohibited.
- 2 Identify the moral claim.** What standard is said to be violated, and why is the conduct morally wrong?
- 3 Separate morality from harm.** Is another person's interest harmed, or is the argument based only on moral disapproval?
- 4 Distinguish public and private dimensions.** Does the conduct involve consent, exploitation, exposure to unwilling observers or a genuine public effect?
- 5 Ask whose morality is being enforced.** Is the standard based on evidence and public reason, or only on majority feeling, tradition or prejudice?
- 6 Test legality and rights.** Is the proposed offence clear, prospective and compatible with privacy, equality and minority protection?
- 7 Examine necessity and proportionality.** Could civil law, regulation, education or private choice address the concern without criminal punishment?
- 8 Identify the proper lawgiver.** Has Parliament enacted a defined offence, or is a court being asked to create or extend criminal liability?

Worked comparisons

Conduct	Moral and harm analysis	Criminalisation issue
Murder	Gravely immoral and directly harmful to another person	Harm and morality strongly overlap
Adultery	Often regarded as immoral and capable of emotional harm	Does wrongfulness justify police and punishment?
Private consensual sexual conduct	May conflict with some moral or religious views without violating another person's rights	Majority disapproval and minority liberty
Public sexual advertising	May raise questions of exploitation, exposure, public decency and harm	Define the prohibited conduct instead of relying on vague morality

Legal English for cases about morality

Term	Meaning in this context	Typical use
public morals	Moral standards said to be shared by society	conduct tending to corrupt public morals
public decency	Minimum standards governing conduct exposed to the public	an outrage to public decency
conspiracy	An agreement between persons to pursue prohibited conduct	convicted of conspiracy
uphold a conviction	Confirm that the conviction remains valid	The House upheld the conviction
dismiss an appeal	Reject the appellant's challenge	The appeal was dismissed
overrule	Declare an earlier legal rule no longer authoritative	The court declined to overrule Shaw
dissent	Disagree with the majority's legal conclusion	A judge dissented
judge-made law	Law developed through judicial decisions	a controversial judge-made offence

Common mistakes

- **Mistake one: treating morality as a fact on which everyone agrees.** Moral standards may be contested, internally diverse and subject to change.
- **Mistake two: assuming that decriminalisation means approval.** The state can refuse to punish conduct while citizens remain free to criticise it morally.
- **Mistake three: treating offence or disgust as harm.** Emotional reactions matter in some legal theories, but they are not automatically equivalent to injury or violation of rights.
- **Mistake four: describing Kneller as a prosecution of homosexuality itself.** The case concerned publication, advertisements and common-law conspiracy offences.
- **Mistake five: saying that courts still possess a general power to create crimes.** Modern authority assigns the creation of new offences to Parliament.
- **Mistake six: confusing public morals with public decency.** They are related but distinct expressions and appeared as different conspiracy counts in Kneller.

Key terms

Term	Concise definition
Legal moralism	The view that immorality may justify criminalisation
Positive morality	Moral standards actually accepted by a society
Critical morality	Standards used to evaluate accepted moral beliefs
Private morality	Moral judgment concerning conduct in the private sphere
Public morality	Moral standards said to concern or constitute the community
Legal certainty	The requirement that law be accessible and sufficiently clear
Common-law offence	An offence recognised through judicial authority rather than created by statute

Final point

Legal moralism exposes a permanent tension in criminal law. Law cannot be entirely separated from moral judgment, yet moral disapproval alone can produce vague offences, intrusive enforcement and discrimination against minorities.

The best analysis therefore asks more than whether conduct is immoral. It asks what harm or public interest is present, whose morality is being enforced, whether the rule is clear and proportionate, and whether the decision belongs to Parliament rather than the courts.

Sources and further reading

Report of the Departmental Committee on Homosexual Offences and Prostitution, Cmnd 247, 1957.

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